EXHIBIT D

From: Michael Cowgill <mcowgill@mctlaw.com>
Sent: Wednesday, January 21, 2026 2:03 PM
To: Rightler, Hillary; Sarah Wagar Hickman; Chip Wagar III; Tamara J. Spires
Cc: Shalom Bonee; Chin, Kristina; Yoly Villada; Abigail Newman; Conger, Ava; Ambler, Hayley; Payton, Gwendolyn; Briand, Elisabeth; Angeleah Eckersen; Helene Gregorich; Whitehead, Maeghan; Jennifer Seiler Avallone
Subject: Re: Moller - Expert Depositions
Attachments: THUNDIYIL_000002.pdf; THUNDIYIL_000001.pdf

****CAUTION: External Email****

Hi Hillary,

Attached please find copies of the poster presentations cited on Dr. Thundiyil's updated CV and discussed during last week's deposition.

Plaintiff disagrees that the disclosure on Nov. 18, 2025, failed to comply with FRCP 26(a)(2)(B) as no publications were excluded. What is cited in your email are news appearances related to public safety and poster presentations at conferences which were already thoroughly asked about and discussed during last week's deposition. Dr. Thundiyil testified that the manuscripts related to the attached posters have not been published, are undergoing peer review, and are not yet final.

Dr. Thundiyil provided his updated CV during the deposition. Numerous questions were asked related to the CV. Dr. Thundiyil could not locate the final posters during the deposition and stated as much. They are provided here. Nonetheless counsel for defendants engaged in extensive questioning about the poster presentations, news appearances, and the unpublished manuscripts. All questions were answered. Plaintiff disagrees with your claim of prejudice. In fact, defense counsel closed the deposition without any objection or statement on the record of an intent to keep the deposition open given the posters had not been provided.

Plaintiff will not agree to re-open the deposition of Dr. Thunidyil.

It is notable that just yesterday defense expert, Dr. Huestis, referenced and relied on data related to the Nutrasource clinical study, which data has never been produced in discovery. Please have Johnson Foods produce all documents related to the Nutrasource study.

Additionally, Defendants served supplemental productions over the holiday season including additional testing documents and spec sheets that were not available during the depositions of defendants such as Martian Sales, Calibre, Nuza and JOPEN. Why these documents were not produced prior to the deposition of defendants is unknown. In fact, during those same depositions defendants produced additional testing documents and stated such production was complete. That now appears to have been false.

If Defendants agree to produce all documents associated to the Nutrasource study being relied on by your experts, and agree with reopening the deposition of Martian Sales for one hour to address the newly produced discovery, Plaintiff may considered reopening Dr. Thundiyil's deposition for one hour as well.

Please let me know your position.

Thank You,

Michael

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From: Rightler, Hillary <HRightler@ktslaw.com>
Sent: Sunday, January 18, 2026 10:08 AM
To: Sarah Wagar Hickman <Shickman@wagarhickman.com>; Michael Cowgill <mcowgill@mctlaw.com>; Chip Wagar III <CWagar@wagarhickman.com>; Tamara J. Spires <twilliams@mctlaw.com>
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Subject: RE: Moller - Expert Depositions

Sarah,

Understood and we will respond to any motion accordingly.

There is another issue that arose out of Friday's deposition of Dr. Thundiyil that we need to resolve or understand whether we need to seek Court intervention so that these issues can be handled at the same time.

Plaintiff's expert disclosure on Nov. 18, 2025 for Dr. Thundiyil failed to comply with FRCP 26(a)(2)(B) as it did not include a "list of all publications authored in the previous 10 years." Dr. Thundiyil's CV was only current through 4/14/2025. His CV provided to Plaintiff on Friday during his deposition included multiple publications and presentations that are highly relevant to the issues in this case as they relate to studies involving mitragynine and causes of death (see below excerpts from Dr. Thundiyil's updated CV). These publications all occurred before the Nov. 18 disclosure date.

These studies came up during Dr. Thundiyil's deposition. Defendants' counsel repeatedly requested the materials and Dr. Thundiyil did not provide them.

If these highly relevant materials had been disclosed, Defendant would have requested them in advance of Dr. Thundiyil's deposition and been able to thoroughly question him on these topics. Defendant has been severely prejudiced by Plaintiff's failure to comply with FRCP 26(a)(2)(B). As a result, Defendant requests that Plaintiff immediately provide all documents related to the below materials and that Plaintiff confirm that Dr. Thundiyil can be re-deposed on these topics.

Please let us know if you agree or whether we need to raise this with the Court.

Page 17:

Iuteri C, Sawyers R, Byrne C, Trojano M, Nagel B, **Thundiyil J.** Case Control Study of Mitragynine Induced Fatalities vs All Cause Deaths with Mitragynine Found on Autopsy. Poster presentation at SAEM Southeastern Regional Meeting. Orlando, FL. July 12, 2025

Iuteri C, Sawyers R, Byrne C, Trojano M, Nagel B, **Thundiyil J.** Risk Factors Associated with Kratom Deaths in a Single State. Poster presentation at SAEM Southeastern Regional Meeting. Orlando, FL. July 12, 2025

Iuteri C, **Thundiyil J**. Case Control Study of Mitragynine Deaths vs All Cause Deaths With Mitragynine Found on Autopsy. Poster presentation at North American Congress of Clinical Toxicology (NACCT). Chicago, IL. September 19 – 21, 2025

Iuteri C, **Thundiyil J**. Risk Factors Associated With Kratom Deaths In A Single State. Poster presentation at North American Congress of Clinical Toxicology (NACCT). Chicago, IL. September 19 – 21, 2025

Page 31:

Thundiyil J. Kratom / 7-OH. Good Day Orlando WOFL (FOX). August 29, 2025

Thundiyil J. Central Florida Doctor Unveils Kratom Research Findings, Potential Dangers. WESH 2 News on CW18. September 15, 2025

Thundiyil J. FDA, Florida Crack Down on 7-OH Products. Spectrum News 13. October 14, 2025

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From: Sarah Wagar Hickman <Shickman@wagarhickman.com>
Sent: Saturday, January 17, 2026 10:02 AM
To: Rightler, Hillary <HRightler@ktslaw.com>; Michael Cowgill <mcowgill@mctlaw.com>; Chip Wagar III <CWagar@wagarhickman.com>; Tamara J. Spires <twilliams@mctlaw.com>
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Subject: Re: Moller - Expert Depositions

Hillary,

Thanks but no thanks. We will be filing a Motion. I'm stunned that we need to do that to take the remaining expert depositions in this obviously complex medical case but, here we are.

As to Defatta, we wouldn't dream of objecting to your taking his deposition just to obstruct your preparation. Please notice it and don't worry, no motion from you will be needed.

SWH

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From: Rightler, Hillary <HRightler@ktslaw.com>
Sent: Friday, January 16, 2026 4:10:28 PM
To: Sarah Wagar Hickman <Shickman@wagarhickman.com>; Michael Cowgill <mcowgill@mctlaw.com>; Chip Wagar III <CWagar@wagarhickman.com>; Tamara J. Spires <twilliams@mctlaw.com>
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Sarah,

We have been working with you to confirm dates our experts were available as you still have depositions within the limit. We disagree with your contention that experts have been paid. The only expert that received payment is Dr. Wang whose deposition occurred yesterday.

Plaintiff is requesting to take 6 depositions beyond the limit provided for in the FRCP without agreement of the parties or Court order.

In an effort to resolve this issue without Court intervention, we will agree to allow you to take 3 depositions over the limit set by FRCP. We will also be noticing the deposition of Dr. Michael DeFatta who you identified in your expert disclosures as a non-retained, may call expert witness. In exchange for this proposal, you agree not to object to our deposition of Dr. DeFatta.

Please let us know as soon as possible which depositions you will proceed with.

Best,

Hillary

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From: Sarah Wagar Hickman <Shickman@wagarhickman.com>
Sent: Friday, January 16, 2026 11:51 AM
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Subject: RE: Moller - Expert Depositions

Hillary,

Are you saying we need to get a Court order to take these depositions? Also, we have been working together for months on setting these up... Care to tell me why you are raising this now when experts have been set, taken time out of their schedules and have been paid?

Look, if we need to get a Court order, we will file today for one.

This seems like something we should be able to resolve outside of Court. These are your expert witnesses... Given the complexity of the case and the jurisdictional discovery we had to do, which was separate and apart from discovery on the merits, we believe getting a Court order to take your (already arranged) expert depositions will be proforma. Just want to make sure you are going to stand rigidly against our taking the depositions of your experts before we file anything.

Let me know.

With Gratitude,

Sarah W. Hickman

Partner

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Subject: Moller - Expert Depositions

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Counsel –

With the deposition yesterday of Dr. Wang, Plaintiff's counsel has now taken 9 depositions. This does not even include the additional 9 depositions you took during jurisdictional discovery.

Plaintiff's counsel has requested dates for and noticed an additional 7 of Defendants' experts (listed below for clarity). Pursuant to FRCP 30, Plaintiff is only entitled to 1 more deposition. Please let us know which deposition you intend to proceed with as soon as possible so we can plan accordingly.

1. Dr. Henningfield
2. Dr. Huestis
3. Dr. McCurdy
4. Dr. Boyer
5. Dr. Dollar
6. Dr. Gandy
7. Dr. Paustenbach

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